



Bill Number: S.B. 1511

Carroll Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg Council

FLOOR AMENDMENT EXPLANATION

1. Specifies that the prohibition against operating a commercial vehicle without evidence of legal presence applies to a person who is issued a nondomiciled commercial driver license.
2. Modifies the evidence an outlined person may provide or which may be requested by a law enforcement officer to include evidence of lawful immigration status and to remove a commercial driver license that is issued by another state or a foreign jurisdiction.
3. Requires a law enforcement officer or law enforcement agency, if an outlined person operating a commercial vehicle fails to provide the prescribed provide evidence, to:
 - a) impose an outlined civil penalty;
 - b) issue a citation; and
 - c) report the violation to the jurisdiction that issued the person's commercial driver license and the Federal Motor Carrier Safety Administration.
4. Allows, rather than requires, a law enforcement agency to impound a commercial motor vehicle and the vehicle's contents if the vehicle is operated by a person who fails to provide the prescribed evidence.

CARROLL FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1511
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 28, chapter 14, article 2, Arizona Revised
3 Statutes, is amended by adding section 28-5233, to read:

4 28-5233. Commercial motor vehicle operator; lawful presence;
5 failure of proof; impoundment of vehicle

6 A. A PERSON [WHO IS ISSUED A NONDOMICILED COMMERCIAL DRIVER
7 LICENSE] MAY NOT OPERATE A COMMERCIAL MOTOR VEHICLE IN THIS STATE UNLESS
8 THE PERSON CAN PROVIDE EVIDENCE OF [LAWFUL IMMIGRATION STATUS PURSUANT TO
9 49 CODE OF FEDERAL REGULATIONS PART 383 OR] LAWFUL PRESENCE IN THE UNITED
10 STATES PURSUANT TO THE ACCEPTABLE DOCUMENTS PRESCRIBED IN SECTION 41-1080.

11 B. A LAW ENFORCEMENT OFFICER MAY REQUEST EVIDENCE OF [LAWFUL
12 IMMIGRATION STATUS OR] LAWFUL PRESENCE [IN THE UNITED STATES PURSUANT TO
13 SUBSECTION A OF THIS SECTION] FROM A PERSON OPERATING A COMMERCIAL MOTOR
14 VEHICLE[, WHICH MAY NOT BE A COMMERCIAL DRIVER LICENSE THAT IS ISSUED BY
15 ANOTHER STATE OR A FOREIGN JURISDICTION] [WITH A NONDOMICILED COMMERCIAL
16 DRIVER LICENSE].

17 [C. IF A PERSON OPERATING A COMMERCIAL MOTOR VEHICLE WITH A
18 NONDOMICILED COMMERCIAL DRIVER LICENSE FAILS TO PROVIDE EVIDENCE REQUESTED
19 PURSUANT TO SUBSECTION B OF THIS SECTION, THE LAW ENFORCEMENT OFFICER OR
20 THE LAW ENFORCEMENT AGENCY OF THE LAW ENFORCEMENT OFFICER SHALL:

21 1. IMPOSE A CIVIL PENALTY PURSUANT TO SECTION 28-5240.

22 2. ISSUE A CITATION PURSUANT TO THIS SECTION.

23 3. REPORT THE VIOLATION TO:

24 (a) THE JURISDICTION THAT ISSUED THE PERSON'S COMMERCIAL DRIVER
25 LICENSE.

26 (b) THE FEDERAL MOTOR CARRIER SAFETY ADMINISTRATION.]

27 [C.] [D.] A LAW ENFORCEMENT AGENCY [SHALL] [MAY] IMPOUND A
28 COMMERCIAL MOTOR VEHICLE, AND ITS CARGO, THAT IS OPERATED BY A PERSON WHO
29 FAILS TO PROVIDE EVIDENCE OF [LAWFUL IMMIGRATION STATUS OR] LAWFUL

| 1 PRESENCE IN THE UNITED STATES [PURSUANT TO SUBSECTION A OF THIS SECTION]
2 UNTIL THE CITATION AND ALL CHARGES RELATED TO THE IMPOUNDMENT ARE CLEARED.
3 THE IMPOUNDMENT CHARGES ARE THE RESPONSIBILITY OF THE OWNER OF COMMERCIAL
4 MOTOR VEHICLE.

5 Enroll and engross to conform

6 Amend title to conform

FRANK CARROLL

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C: JR

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